

Court No. - 9

Case :- WRIT - C No. - 8771 of 2021

Petitioner :- Vijay Shankar Chauhan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rishi Kant Rai, Vinay Kumar Rai

Counsel for Respondent :- C.S.C., Amit Krishna, Narendra Kumar Tiwari

Hon'ble Sanjay Yadav, Acting Chief Justice

Hon'ble Prakash Padia, J.

Matter taken up through video conferencing.

Heard learned counsel for the petitioner.

Shri Udit Chandra, learned counsel appear for the respondent no.3.

The petitioner by way of present petition seeks following relief:-

"a. Issue a writ, order or direction in the nature of mandamus directing the respondent no.3 to recalculate the electric bill of connection No. 062520 'Ata Chakki' (which is in the name of petitioner's father) by admitting the bills deposited by him till January 2014, and provide the statement of electric bill under the provision of One Time Settlement (OTS) Scheme.

b. Issue a writ, order or direction in the nature of mandamus directing the respondents, to not take any coercive action for recovery of electric dues."

In respect of the relief sought, in our considered opinion, the petitioner has a remedy of settlement of dispute under Clause 6.5 of Uttar Pradesh Electricity Supply Code, 2005 which mandates:-

"6.5 Disputed Bills and Arrears :

(a) If there is an error of a non-pecuniary nature (incorrect name, address, etc.) in the bill the complaint shall be registered with the concerned competent authority. Corrections, if any required, shall be made in the next bill. The consumer shall be required to make the payment before due date.

(b) If a consumer disputes the accuracy of any bill, he may either make the payment under protest of (i) an amount equal to the sum claimed from him, or (ii) the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less, and file a complaint with the competent authority, before the due date for payment. The complaint shall be decided within 7 days and consumer shall be informed.

(i) If the Complaint is found to be correct by the competent authority, a

revised bill shall be issued within 7 days of the complaint and consumer shall be given 7 days to make the payment. The Consumer shall not be charged any late payment surcharge (and he shall be eligible for timely payment rebate, if any applicable) if the payment is made by the revised due date of payment. If payment has already been made, excess amount shall be adjusted in subsequent bills.

(ii) If the complaint was found to be incorrect, the consumer shall be notified and directed to make the payment, if not already paid, as per the original bill immediately and the consumer shall be liable to pay the late payment surcharge.

(c) If a consumer has cleared his dues as specified in the bill, and still some part of it is shown as an arrear in the next bill, the consumer may lodge a complaint with the Licensee. However, if this arrear is again reflected in the next billing cycle also, the consumer shall be entitled for compensation as prescribed in Annexure 7.1.

(d) In case licensee raises a bill for supply of energy to permanently disconnected connection e.g. six months after temporary disconnection, the Consumer may intimate the MD of the licensee under proper receipt and if no action is still taken within next 15 days, shall be entitled for compensation as prescribed in Annexure 7.1 by licensee. The licensee shall submit a quarterly statement to the Commission giving zone wise details of such bills along with compensation given on this account during the quarter."

Since the petitioner has an efficacious alternative statutory remedy for redressal of his grievance, we decline to interfere in the matter. The petitioner is set at liberty to avail the remedy under clause 6.5 of Code of 2005.

In case, if a dispute is raised by the petitioner within a period of 30 days from today, the Authority concerned shall dwell upon the same and decide it on merit by a speaking order within a period of three months.

Petition stands **disposed of** finally in above terms.

Order Date :- 10.6.2021

Kirti

(Prakash Padia, J) (Sanjay Yadav, ACJ)